

Tilak Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 July 2023 · 2023:AHC:139283-DB · Writ - C No. 21087 of 2023 · **Writ disposed; instalment grievance relegated to Clause 6.14**

HEADNOTE

A writ seeking leave to deposit the remaining instalments of an electricity bill under a rebate scheme was disposed of. Clause 6.14 of the U.P. Electricity Supply Code, 2005 is an efficacious alternative remedy, and the High Court will not bypass it. If the petitioner applies to the fourth respondent within two weeks, the application is to be examined and redressed strictly in accordance with law within six weeks. The Section 56(2) objection was not decided.

FACTUAL SUMMARY

Tilak Singh petitioned the Allahabad High Court for a mandamus to let him deposit the remaining instalments of his electricity bill under a rebate scheme. On 4 July 2023 his counsel invoked Section 56(2) of the Electricity Act, 2003, saying the instalments had been fixed arbitrarily without regard to the two-year bar, and the Bench adjourned the case for instructions. On 12 July 2023 counsel for the fourth respondent objected that the grievance concerned remaining instalments under that rebate scheme.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

rebate-scheme instalments as alternative remedy

HOLDING

A grievance about depositing the remaining instalments of an electricity bill under a rebate scheme has an efficacious alternative remedy under Clause 6.14 of the Electricity Supply Code, 2005, and the writ court will not bypass that forum. If the consumer applies to the fourth respondent within two weeks, the application is to be examined and redressed strictly in accordance with law within six weeks. ¶ 3-5

PRINCIPLE TAGS

installment-payment-clause-6.14 The prayer to deposit remaining electricity-bill instalments under a rebate scheme was routed to Clause 6.14 of the Supply Code, 2005, which the Court treated as the statutory forum the writ could not bypass. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 56(2) OF THE ELECTRICITY ACT, 2003 BARRED RECOVERY OF THE DUES OR CONTROLLED THE INSTALMENTS FIXED UNDER THE REBATE SCHEME

Petitioner's counsel raised the two-year bar on 4 July 2023. The order of 12 July 2023 did not examine it.

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO DEPOSIT THE BALANCE OF THE BILL UNDER THE REBATE SCHEME

Left to the fourth respondent to examine any application in accordance with law. ¶ 5